

22STCV37608 22STCV37608

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Case Number: 22STCV37608 Hearing Date: July 1, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Plaintiff's Motion
to Vacate Stipulated Protective Order

Plaintiff's Motion to Vacate Stipulated Protective Order is
denied.

BACKGROUND

Plaintiff John Doe J.R. (Plaintiff) filed this action
against Los Angeles Unified School District (LAUSD), former LAUSD employee
Darryl Lott, and Doe defendants. Plaintiff alleges that Lott sexually abused
him while he was a minor student at one of LAUSD's schools.

The causes of action are: (1) negligent hiring, supervision,
and retention; (2) negligent supervision of a minor; and (3) failure of a
mandated reporter to report suspected child abuse under Penal Code section
11166.

On May 2, 2024, the Court entered the parties' Stipulated
Protective Order (Protective Order) to facilitate the exchange of discovery.
Under the Protective Order, LAUSD designated Lott's personnel records and the
identities and employee numbers of certain school site administrators as
confidential.

The Court granted LAUSD's motion for summary judgment and
entered judgment. The Court of Appeal affirmed on June 2, 2026, and Plaintiff
filed a petition for rehearing the same day. The remittitur is scheduled to
issue on August 3, 2026. (Carelli Decl. ¶¶ 2-4.)

Plaintiff filed a Motion to Vacate Stipulated Protective Order. LAUSD filed an Opposition.

LEGAL STANDARD

The perfecting of an appeal stays proceedings in the trial court upon the matters embraced in or affected by the judgment or order appealed from. (Code Civ. Proc., § 916, subd. (a).) During the pendency of the appeal, the trial court is divested of jurisdiction over any matter embraced in or affected by the appeal and may not proceed as to that matter until the appeal is determined. (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 196-197.) Whether a matter is embraced in or affected by the appeal depends on whether the trial court proceeding would affect the effectiveness of the appeal. (*Elsa v. Saberi* (1992) 4 Cal.App.4th 625, 629.)

ANALYSIS

Plaintiff seeks to vacate the Protective Order on the grounds that this action has concluded and that continued confidentiality impairs his use of the discovery materials on appeal. The motion fails for two independent reasons: (1) the appeal remains pending, so the Court lacks jurisdiction to vacate or modify the Protective Order; and (2) even if the Court had jurisdiction, Plaintiff has not shown good cause to disturb it.

I. Jurisdiction During the Pending Appeal

Here, the appeal remains pending. Although the Court of Appeal affirmed the judgment on June 2, 2026, Plaintiff filed a petition for rehearing that same day, the remittitur is not set to issue until August 3, 2026, and Plaintiff may still seek review in the Supreme Court. (*Carelli Decl.* ¶ 4.)

The Protective Order governs the use of materials produced in discovery in this action, and those materials would again be at issue were the judgment disturbed on review. Vacating or modifying the Protective Order is therefore a matter embraced in or affected by the pending appeal. Accordingly, the Court is without jurisdiction to grant the relief Plaintiff seeks while the appeal remains pending. (Code Civ. Proc., § 916, subd. (a).)

II. Good Cause to Vacate the Protective Order

Even if the Court had jurisdiction, Plaintiff's asserted grounds do not warrant vacating the Protective Order. Plaintiff's premise that this action has concluded is incorrect, for the reasons stated above.

The Protective Order also provides its own procedures for the relief Plaintiff seeks. A party that disputes a confidential designation may challenge it, and a party that must file protected materials may file them under seal. (Protective Order ¶¶ 6, 17.) Plaintiff has not invoked those procedures or shown that they are inadequate. Accordingly, Plaintiff has not shown good cause to vacate or modify the Protective Order.

CONCLUSION

Plaintiff's Motion to Vacate Stipulated Protective Order is denied.